

case to trial is impracticable for all practical purposes.” (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85, citations omitted.) In determining if tolling exceptions apply under subdivision (c), the “trial court must consider all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (*Id.* at 86, citation omitted.) The “trial court has discretion to determine whether that exception applies....” (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The appropriate analysis focuses on the ‘justifiability’ of the plaintiff’s reason for not bringing the case to trial, rather than on the defendant’s “complicity in the delay.” (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555; see also *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1339-1340 [critical factor in applying tolling exceptions to a given factual situation is whether the plaintiff exercised ‘reasonable diligence’ in prosecuting his or her case]; *Westinghouse Elec. Corp. v. Superior Court* (1983) 143 Cal.App.3d 95, 99 [“had plaintiff been the dilatory party, mere impracticability is not an excuse, since the impracticability arises from plaintiff’s own fault”].) The plaintiff bears the burden of proving that the circumstances warrant application of the exception. (*Seto, supra*, 86 Cal.App.5th at 86.)

This case was filed on December 11, 2019, which was approximately six years ago. The plaintiff reasonably believed she had procured a settlement on June 14, 2024 after parties appeared in Court for a settlement conference. Since no written agreement was signed by the parties, plaintiff reasonably needed additional time to prepare and finalize the details. Plaintiff signed the settlement agreement prepared by her attorney on September 1, 2024, but defendants delayed and eventually refused to sign the precise agreement provided by plaintiff. When defendants sent a changed (and signed) agreement back, plaintiff refused to accept it. Some further back and forth occurred and in April of 2025, plaintiff informed the Court and defendants of an intention to file a “Motion to Set Aside Unenforceable Settlement Order” and to amend the complaint.

The time during which plaintiff could be said to have reasonably believed there was a settlement was no more than eight months. This case has extended beyond six years. The settlement negotiation delay is insufficient to make this case timely.

With respect to the other considerations plaintiff argues should toll the five-year statute, they lack merit. Plaintiff argues the parties were at least equally dilatory in litigation, both sides missing appearances, but defendant missing more, etc. This misconstrues the showing necessary here, which is focused primarily on plaintiff’s conduct. Plaintiff also describes a straightforward case with strong evidence, but this factor weighs against delays being justified. Plaintiff argues that a settlement conference is tantamount to “mediation” such that tolling provisions related to submission to mediation apply. (See Memorandum of Points and Authorities in Support of Opposition, 4:17-21; 5:10-6:9.) This position lacks merit for the reasons described in the moving papers. (See Memorandum of Points and Authorities in Support of Motion, 8:9-10:19.)

While the Court acknowledges that defendants caused delay here, possibly in bad faith, the analysis must focus on plaintiff’s own diligence. The delays in this case have amounted to an unreasonable delay in prosecution and plaintiff has failed to meet her burden to demonstrate that bringing the action to trial “was impossible, impracticable, or futile.”

Dismissal is therefore mandatory.

14. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
***HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL**
FILED BY:
TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: N25-2267
CASE NAME: PETITION OF:RAVI GANJOO
HEARING ON PETITION IN RE: PETITION FOR EXPUNGEMENT OF PUBLIC FINRA RECORDS OF RAVI GANJOO
FILED BY:
TENTATIVE RULING:

DENIED. Petitioner has failed to provide proof of service that the Petition was personally served on Respondent/Interested Party.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-02862
CASE NAME: DANIEL DESCALSO VS. JOHN CORBETT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS BY PLAINTIFFS DANIEL AND JULIA DESCALSO TO DEFENDANTS JOHN CORBETT AND GILMAR SALVADOR**
FILED BY: Defendant
TENTATIVE RULING:

Granted. Amount of sanctions TBD.
Appearance required by attorney from each side who will actually be TRIAL COUNSEL. Plaintiff's attorney shall be prepared to explain how diametrically opposed responses to requests for admission can be considered valid responses sufficient to avoid sanctions in this case. In addition, no verification was attached to either set of responses.

17. 9:01 AM CASE NUMBER: C24-02862
CASE NAME: DANIEL DESCALSO VS. JOHN CORBETT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS BY PLAINTIFFS DANIEL AND JULIA DESCALSO TO DEFENDANTS JOHN CORBETT AND GILMAR SALVADOR**
FILED BY: Defendant
TENTATIVE RULING:

Granted. Amount of sanctions TBD. Appearance required by attorney from each side who will